

Tamil Nadu Co-Operative Handloom Weavers family pension scheme, 1991

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Tamil Nadu Co-Operative Handloom Weavers family pension scheme, 1991

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Tamil Nadu Co-Operative Handloom Weavers family pension scheme, 1991

Rule TAMIL-NADU-CO-OPERATIVE-HANDLOOM-WEAVERS-FAMILY-PENSION-SCHEME-1991 of 1991

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Tamil Nadu Co-Operative Handloom Weavers family pension scheme, 1991

Published vide Notification No. G.O. Ms. No. 101, Handlooms, Handicrafts Textiles and Khadi (D2), dated 27th March 1992

Chapter 1

Preliminary

1.

Short title, explanation and commencement.

(1)

This scheme may be called the Tamil Nadu Co-operative Handloom Weavers Family Pension Scheme, 1991.

(2)

It shall be deemed to have come into force on the 1st January 1992.

(3)

It shall apply to the Handloom Weavers, who are members of Primary Weavers Co-operative Societies in the State of Tamil Nadu.

Chapter II

2.

Definitions.

- In this scheme, unless the context otherwise requires,-

(a)

"Rules" means the Tamil Nadu Co-operative Handloom Weavers Family Pension Rules;

(b)

"Year" means the year commencing on the 1st day of April and ending with the 31st day of March;

(c)

"Form" means a form appended to the Scheme;

(d)

"Government" means the Government of Tamil Nadu;

(e)

"Government Security" shall have the meaning assigned to it in the Public Debt Act, 1944 (Central Act XVIII of 1944);

(f)

"Wages" means wages or remuneration paid or payable to a handloom weaver for the work done or services rendered by him to Primary Weavers Cooperative Societies but does not include bonus;

(g)

All the other words and expression used in this scheme but not defined shall have the meaning, respectively, assigned to them in the Rules.

Chapter III

Tamil Nadu Co-Operative Handloom Weavers Family Pension Funds

3.

Constitution of the Fund.

(1)

The Government shall constitute a Fund called the "Tamil Nadu Co-operative Handloom Weavers Family Pension Fund" for the benefit of the members of Primary Weavers Co-operative Societies participating in the scheme.

(2)

All the contributions to the fund shall be made by means of deposit into the Government account or to the account of any other agencies approved by the Government for the purpose.

(3)

The fund shall consist of-

(a)

contribution by the Government;

(b)

fund available at the credit of the forfeiture account in the Tamil Nadu Handloom Weavers Savings and Security Scheme in public deposit account as on the last day of the financial year 1991 and subsequent years;

(c)

deposits by the Primary Co-operative Societies admitted into the scheme;

(d)

subscription by the members coming under the scheme;

(e)

any other contribution coming under the scheme.

(4)

Control of the Fund - The control of the fund shall vest with the Trustee.

Chapter IV

4.

Membership and contribution.

(1)

Every Primary Weavers Co-operative Society functioning in the State of Tamil Nadu shall be eligible to participate in the scheme. But no society shall however claim admission into the scheme as a matter of right. The Government may from time to time, under their discretion decide the number of societies to which the scheme shall be extended having regard to the financial and other considerations. The Government shall also have the right to defer, interrupt, discontinue or modify the scheme wholly or in part of any or all societies at their discretion and without assigning any reason therefor.

(2)

Eligibility of the members to be admitted into the scheme. - Any member of a Primary Weavers Co-operative Society shall be eligible for admission into the scheme, if he satisfies the following conditions:-

(a)

He should have been an active member engaged in weaving for the society for a minimum period of 5 (five) years on the date of his application for admission;

(b)

He should have achieved the production level of at least 75 per cent of the average annual production in linear metres per head for the society, in respect of the particular variety of cloth which the members were weaving during the preceding 5 (five) years, at the time of admission. The prescribed level of production for each member for every year would be assessed as on the 31st March;

(c)

He should not be in default in the payment of subscription to the Tamil Nadu Co-operative Handloom Weavers Family Pension Fund for a continuous period exceeding 6 (six) months;

(d)

He should not have attained the age of 58 (fifty eight) years;

(e)

He should be of sound health without any serious ailment, whether hereditary or otherwise;

(3)

Subscription to the Fund,-A member admitted into the scheme shall subscribe an amount at the rate of Rs. 2 (two) per mensem and the same shall be collected from out of the wages paid to him and remitted by the societies every month into the Government Treasury.

(4)

The amount and the period of Family Pension. - (i) The quantum of family pension shall be Rs. 250 (two hundred and fifty) month payable for a maximum period of 10 (ten) years.

(ii)

Family Pension shall be payable on the death of a member, who continued to be covered under the scheme, to one or more members of the family of the deceased, nominated by the member and in case, if, no nominated members are alive, to the member or members of the family, who are the legal heirs as determined by the Authorised Officer.

(iii)

The death of a member for the purpose of pension as above shall be due to natural causes or unexpected accidents. The family of the member, who died due to suicide shall not be entitled for any family pension, under the scheme.

(iv)

Every member applying for admission into the scheme shall make a nomination in favour of a member of his family in the form prescribed along with application for admission into the scheme. A member, if he so desires, shall nominate more than one person and indicate the proportion at which the pension is to be paid among them.

(v)

At the time of making first nomination, the member may nominate 2 (two) persons independently in the column provided for in the nomination form. The second person nominated as above shall have the right to get the family pension for the remaining period, in the event of death of the first nominee or first set of nominees, before the expiry of the period of family pension.

(vi)

The nomination may be in favour of one or more persons belonging to the family of the member as defined in the rules.

(vii)

If the nominee predeceases the member, a fresh nomination shall be made by the member.

(viii)

The Authorised Officer in the Directorate of Handlooms and Textiles shall be the authority competent to sanction the family pension. After due verification of the details, the Authorised Officer, shall sanction the pension and intimate the same to the claimant or claimants through the Circle Assistant Director of Handlooms and Textiles and the society.

Chapter V

5.

Disbursement of Family Pension.

(1)

Every recipient of pension under the scheme shall be required to open a savings account in the Post Office nearest to his or her place of residence. The circle Assistant Director of Handlooms and Textiles shall draw every month one single bill covering all the recipients under his jurisdiction and draw the consolidated amount, by presenting the bill at the concerned Treasury. He shall remit the Family Pension at the cost of recipients to the post offices concerned to be credited to the respective Savings Account of the pensioners.

(2)

The family pension amount shall be drawn and credited to the respective post office savings accounts, before the 10th of succeeding month.

(3)

The circle Assistant Director of Handlooms and Textiles shall arrange for the physical verification of the pensioners and their pass-books at least once in a year and shall furnish the life certificate for all of them to the Authorised Officer, before the 31st March of every year.

(4)

Administration of the Fund and Accounts. - (i) It shall be the responsibility of the Trustee to deploy fund available at the credit of the fund in securities and deposits of approved agencies in such a way as to gain maximum monetary advantage for the scheme.

(ii)

All interest and other income realised on investment shall be accumulating with the fund under any recognized money multiplying schemes.

(iii)

It shall be the responsibility of the Trustee to cause annual audit of the accounts under the scheme and to submit the audited accounts and audit report to the Government before the dates prescribed in the Rules.

(iv)

The Government shall place the audited accounts and audit report on the table of the Legislature within a reasonable time.

(5)

Appeal. - The Authorised Officer, appointed under the scheme shall be the first Appellate Authority in respect of orders, awards etc, passed by the Assistant Director of Handlooms and Textiles under the Rules and the Trustee shall be the next Appellate Authority in respect of appeals, revision, etc., over the orders of the Authorised Officer and the decision or ruling or awards or order passed by the Trustee shall be final and binding on all concerned.

Chapter VI

6.

Transfer of existing accounts, funds, maintenance of records and deposit of funds.

(1)

Any member already covered by the scheme of the society, in the event of that society being liquidated and such a member is being removed under the rules, shall be admitted in the scheme by enrolling himself in a neighbouring Society with the prior approval of the Authorised Officer and the member shall continue under the scheme. The time lag that would occur in between his removal from the scheme due to the liquidation of the earlier society and his admission into another neighbouring society for the purpose of his continuance in the scheme shall be condoned and for all practical purposes he shall be considered to be continuing in the scheme. In case of such admission in the new society, the accounts as well as the funds available at the credit of the members in the erstwhile society shall be transferred to

the society in which he/they/is/ are admitted.

(2)

Maintenance and production of records of the society - It shall be the responsibility of the Primary Weavers Co-operative Society, the circle Assistant Director of Handlooms and Textiles, the Authorised Officer and the Trustee to maintain the respective records and registers prescribed under the Rules.

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